

Further, the motion must be accompanied by a declaration and must specify: (1) the effect of the amendment; (2) why the amendment is proper and necessary; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the amendment was not made earlier. (C.R.C. rule 3.1324(b)(1)-(4).)

Plaintiff's attorney has not complied with the mandatory requirements under California Rule of Court 3.1324, including failing to identify specifically the changes to the FAC, addressing when the facts pertaining to the proposed SAC were discovered and why the amendment was not submitted earlier.

Motion for Leave to File Second Amended Complaint DENIED.

Case Management Conference and OSC continued to 9.14.26.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2508414	MAUL VS VERISMA SYSTEMS, INC.	MOTION TO DISMISS COMPLAINT OF KIMBERLY MAUL BY VERISMA SYSTEMS, INC.

Tentative Ruling: CCP section 418.10(a)(2) provides that “[a] defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes:... (2) To stay or dismiss the action on the ground of inconvenient forum. Further, section 418.10(e)(3) provides that “[f]ailure to make a motion under this section at the time of filing a demurrer or motion to strike constitutes a waiver of the issues of lack of personal jurisdiction, inadequacy of process, inadequacy of service of process, inconvenient forum, and delay in prosecution.” (CCP §418.10(e)(3).)

CCP section 410.30 provides “[w]hen a court upon motion of a party or its own motion finds that in the interest of substantial justice an action should be heard in a forum outside this state, the court shall stay or dismiss the action in whole or in part on any conditions that may be just.” (CCP §410.30(a).) Further, section 410.30 provides that “418.10 do[es] not apply to a motion to stay or dismiss the action by a defendant who has made a general appearance.” (CCP §410.30(b).)

Plaintiff asserts that pursuant to the language in section 418.10(a)(2) this motion is untimely because it was filed after the time to plead had passed. However, Defendant has entered a general appearance in this matter, therefore, section 418.10(a)(2) does not apply, pursuant to the provisions in section 410.30(b). Accordingly, a motion to dismiss by Defendant, pursuant to CCP §410.30(a) would not be untimely. However, Defendant incorrectly moved pursuant to CCP §418.10(a)(2), which does not apply once a general appearance has been entered. Further, the moving papers do not address why the interests of substantial justice would be served by having the matter heard in Georgia.

Motion to Dismiss for Improper Venue DENIED.

Case Management Conference continued to 8.19.26.

The parties are ordered to file with the Court ten days in advance of the continued CMC a joint declaration of counsel addressing their efforts to meet and confer in accord with Local Rule 3218 and Rules of Court, 3.724. The declaration should specifically address

whether the parties have agreed upon a discovery timeline, and if so what that timeline is, and what form of alternative dispute resolution the parties believe is appropriate in this case. The updated Case Management Statement shall be submitted on pleading paper with a brief summary of the status of the case, including issues with forum if still pending, and any other issues that need to be addressed by the court. Do not use Judicial Counsel form CM-110.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2508934	STEIN VS GUITAR	MOTION FOR ATTORNEYS FEES BY DOUGLAS E. FIERBERG, RACHAEL J. DENHOLLANDER, CARI S. SIMON, JACOB R. GOODMAN

Tentative Ruling: Attorneys' fees may be awarded to a prevailing party as costs when authorized by contract, statute or law. (CCP § 1033.5(a)(10).) Here, the statutory basis authorizing fee award is found in the anti-SLAPP statute at CCP §425.16(c)(1), which provides that, other than in few exceptional categories of cases to which this case does not belong, "a prevailing defendant on a special motion to strike shall be entitled to recover his or her attorney's fees and costs." (CCP §425.16(c)(1).) Any fee award is mandatory. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1131.) The fee award must be reasonable. (*Robertson v. Rodriguez* (1995) 35 Cal.App.4th 347, 362.) Here, there is no dispute that Fierberg Defendants are the prevailing party, and as such, entitled to attorneys' fees and costs.

The amount of an attorney fee award under the anti-SLAPP statute is computed using the lodestar method under which the court multiplies the number of hours reasonably expended by the reasonable hourly rate prevailing in the community for similar work. (*Cabral v. Martins* (2009) 177 Cal. App. 4th 471, 491.) The court has discretion to award less than requested if it determines that the fee request is unreasonable. (*Christian Research Institute v. Alnor* (2008) 165 Cal. App.4th 1315, 1322.)

The court may rely on its own experience in determining whether the hourly rate sought or hours spent on the matter are reasonable. (*EnPalm, LLC v. Teitler* (2008) 162 Cal.App.4th 770, 774.) "The "experienced trial judge is the best judge of the value of professional services rendered in his court, and while his judgment is of course subject to review, it will not be disturbed unless the appellate court is convinced that it is clearly wrong" ["]—meaning that it abused its discretion. [Citations.]" (*Cabral, supra*, 177 Cal. App. 4th at 491.)

The reasonable hourly rate is that prevailing in the community for similar work. (*PLCM Group, Inc. v. Drexler* (2000) 177 Cal. App. 4th 471, 491.) In determining the value of the legal service, courts consider several factors, including, "the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given, the success or failure, and other circumstances in the case." (Id at 1096.) Defense counsel requests hourly rates of \$1,019 and \$1,227, which counsel claims are consistent with the Laffey Matrix based on rates for Washington D.C. (Decl. of Lupton, ¶15.) These rates are substantially higher than the market rate for Riverside County. The court reduces rates to \$700 each for attorneys Waxler and Lupton.

Plaintiff argues that the hours claimed by counsel are also excessive. The fee award is limited to fees and costs incurred on the special motion to strike, and not the